Bluebook Training, Rules 10-11

Monday, February 23, 2026

Admissions Updates

- **Admissions Events**
  - **Inside the First Year**: Perspectives from Upper Masthead on Tuesday, **February 24**, 12:10 pm on Zoom
  - **Inside Upper Masthead**: Student Perspectives on Thursday, **February 26**, 2:10 pm

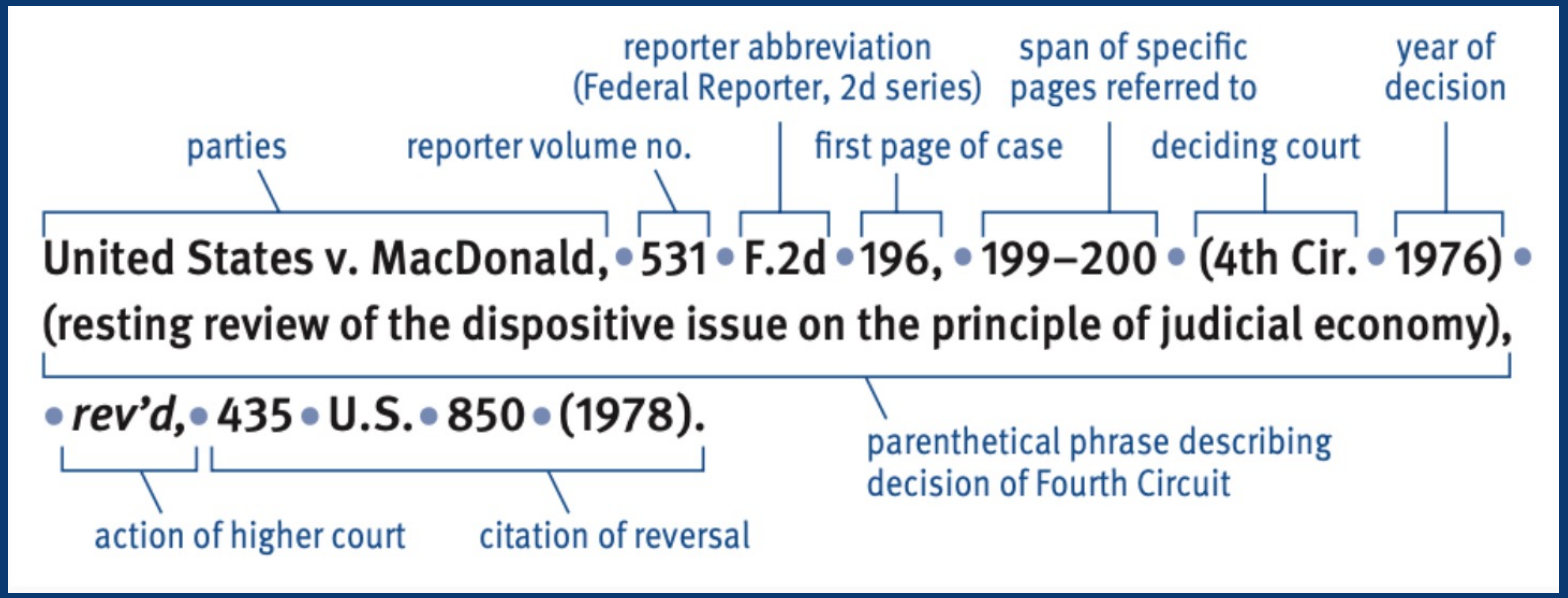
- **Office Hours**
  - EDE & EDME on Tuesday, February 24, 1:00 PM on Zoom

- Admissions Statement Released! Monday, **March 2** at 8 AM

Rule 10: Cases

Rule 10

"v." for "versus"
reporter volume no.
first page of case
specific page referred to
Meritor Sav. Bank • v. • Vinson, • 477 • U.S. • 57, • 60 • (1986).
first party
second party
reporter abbreviation (U.S. Reports)
date of decision (no court is listed because it is clear from reporter name)


reporter abbreviation (Federal Reporter, 2d series)
span of specific pages referred to
year of decision
parties
reporter volume no.
first page of case
deciding court
United States v. MacDonald, • 531 • F.2d • 196, • 199–200 • (4th Cir. • 1976) •
(resting review of the dispositive issue on the principle of judicial economy),
• rev'd, • 435 • U.S. • 850 • (1978).
parenthetical phrase describing decision of Fourth Circuit
action of higher court
citation of reversal

Rule 10.1

Basic Citation Forms

Lists basic citation forms for cases. Useful if you need a quick example or template, but <u>not comprehensive</u>.

- <u>Example</u>: "Decision available in electronic database" only provides an example of a Lexis citation. If you're using Westlaw, you'll need to look to Rule 10.8.1(a).

Decision available in electronic database after revision	Phibrick v. Haber, No. 90-349, 1990 U.S. Dist. LEXIS 20837, at *4 (D. Mass. Dec. 4, 1990, revised Jan. 3, 1991).
Published decision	Ward v. Reddy, 727 F. Supp. 1407, 1412 (D. Mass. 1990).
Appeal docketed	Yee v. Grohman, 727 F. Supp. 1407 (D. Mass. 1990), *appeal docketed*, No. 90-567 (1st Cir. Dec. 20, 1990).
Brief, record, or appendix	Brief for Appellant at 7, Kitchens v. Scotten, 925 F.2d 314 (1st Cir. 1991) (No. 90-568).

Case Names

- 10.2.1 is a general rule for case names. It applies to case names in both text and citations.
  - Very important rule that you will use often
- 10.2.2 has a few extra rules that apply only to case names in citations.
  - Differences are **typeface** (italicize in textual sentences and romanize in citations) and **abbreviations** (in textual sentences, abbreviate only if in 10.2.1(c); in citations, abbreviate all words according to T6 and T10, with some exceptions)

Parties Cited

- If there are more than two parties on a side, only cite the first party listed
  - Omit et al.
  - Omit alternative names given for the first-listed party (*e.g.*, Maplebear not Maplebear d/b/a Instacart)
  - For in rem cases, only cite the first item listed
  - But make sure you're retaining an entire partnership name (*e.g.*, Davis Polk & Wardwell)
- When you have a consolidated case, only cite the first case listed

Procedural Phrases

- ***Ex rel.*** = "on behalf of," "for the use of," etc.
- ***In re*** = "in the matter of," "petition of," etc.
  - These are **always italicized** in textual and citation sentences.
- Only use *In re* for nonadversarial cases (i.e., cases without the "v.")
  - Right: Gorman v. Bush
  - Wrong: ~~*In re* Gorman v. Gore~~
- Retain descriptive phrases that define the party, like "Estate of," "Will of," etc.

Abbreviations

- Use widely known abbreviations according to Rule 6.1(b), such as NLRB
- **Always abbreviate the following eight words**, unless they are the first word in a party name:

And → &	Corporation → Corp.
Association → Ass'n	Incorporated → Inc.
Brothers → Bros.	Limited → Ltd.
Company → Co.	Number → No.

Remember 10.2.1(c) applies to textual sentences, whether in main text or footnote text

Use of "The"

- In general, omit "The" as the first word of a party's name
  - ~~The~~ Miami Herald v. Sercus

- Exceptions:
  - The case involves The King or The Queen
  - "The" is part of an established popular name, e.g. The Slaughterhouse Cases
    - BUT: Omit if used textually
    - Right: "Neither of the *Civil Rights Cases* opinions was correct"
    - ~~Wrong: "Neither of *The Civil Rights Cases* opinions was correct."~~
  - "The" is part of the name of a party in an in rem action (*In re*)
    - *In re* The Clinton Bridge

Descriptive Terms

- Omit terms that describe a party already named
  - Burns v. McMillen~~, Administrator~~
- But remember to keep descriptive terms that actually define the party, per Rule 10.2.1(b)
  - Retain Estate of, Trustees of

Geographical Terms

- Omit "City of," unless it begins a party name
  - Wrong: Mayor of the City of New York v. Clinton
  - Right: Mayor of New York v. Clinton
  - Right: City of New York v. Clinton

- Omit governmental designations such as "State of" <u>except</u> when citing decisions of the courts of that state, in that case only "State" is retained
  - Right: Brady v. Maryland, 373 U.S. 83 (1963)
  - Wrong: Brady v. ~~State of~~ Maryland, 373 U.S. 83 (1963)
  - Right: Brady v. State, 174 A.2d 167 (Md. 1961)
  - Wrong: Brady v. State ~~of Maryland~~, 174 A.2d 167 (Md. 1961)

Rule 10.2.1(f)

Geographical Terms

- Generally omit prepositional phrases of location, unless
  - (1) doing so would leave only one word; or
  - (2) the phrase is part of a business name

  - Right: Planned Parenthood of Southeastern Pennsylvania v. Casey
  - ~~Wrong: Planned Parenthood v. Casey~~

Personal Names

- If the party is a person, only include the surname, unless
  - (1) the surname is abbreviated, or
    - Heather G. v. Robert P.
  - (2) the name is entirely in a language where the surname precedes the given name(s)
    - Chow v. Ha Quang Jin
- If the party name consists entirely of initials, keep all initials
  - Example: R.A.V. v. City of St. Paul
- Make sure that the name is a personal name, not a business
  - Calvin Klein v. Andrew Christian

Business Names

- Omit business firm designations (such as "Inc.," "Ltd.," "L.L.C.," etc.) if the name also contains a word such as "Ass'n," "Bros.," "Co.," "Corp.," "Ins.," or "R.R.," that clearly indicates that the party is a business firm:
  - Wisconsin Packing Co.~~, Inc.~~ v. Indiana Refrigerator Lines, Inc.

- Remember: this rule is narrow; only omit when completely unambiguous

- BUT see Style Guide Rule 10.2 (h)

Business Names

- Do not omit the abbreviations "Ass'n," "Bros.," "Co.," "Corp.," "Ins.," or "R.R." if one such abbreviation follows another.

- Right: St. Paul Fire & Marine **Ins. Co.**, 438 U.S. 531 (1978)
- Wrong: St. Paul Fire & Marine Ins., 438 U.S. 531 (1978)

Union Names

- Only include the smallest unit
  - NLRB v. Radio & Television Broadcast Engineers Local 1212, ~~IBEW, AFL-CIO~~
- Only include the first *full* industry designation
  - International Brotherhood of Teamsters, ~~Chauffers, Warehousemen & Helpers~~
  - International Union of Doll & Toy Workers v. Local 379

IRS Commissioner

- The Commissioner of Internal Revenue is just referred to as "Commissioner"
  - Commissioner v. Duberstein

Popular Case Names

- If a case is known by a popular name, as opposed to the case name in a reporter, you must either:
  - Substitute the popular name for the reported name; or
    - The Prize Cases, 67 U.S. (2 Black) 635 (1863).
  - Indicate the popular name parenthetically in the same typeface
    - The Brig Amy Warwick (The Prize Cases), 67 U.S. (2 Black) 635 (1863).

- If the case is known by both names, then you must include the name as reported. The popular name can be indicated parenthetically in italics.
  - Youngstown Sheet & Tube Co. v. Sawyer (*Steel Seizure*)

Case Names in Citations

- Apply the rules from 10.2.1 PLUS
- Abbreviate any word in **T6** that is part of a party's name!!
- Abbreviate states, countries, and geographical units in **T10**
  - [1] Cal. Pub. Emps.' Ret. Sys. v. ANZ Sec., Inc., 137 S. Ct. 2042 (2017)
  - In *California Public Employees' Retirement System v. ANZ Securities, Inc.*, 137 S. Ct. 2042 (2017), the Supreme Court resolved…

- Exception: Do not abbreviate states, countries, and geographical units that are the entire name of the party. This applies to both T6 and T10.
  - Right: South Dakota v. Dole
  - ~~Wrong: S.D. v. Dole, S. Dakota v. Dole~~
  - Right: United States v. Texas

Case Names in Full in a Textual Sentence

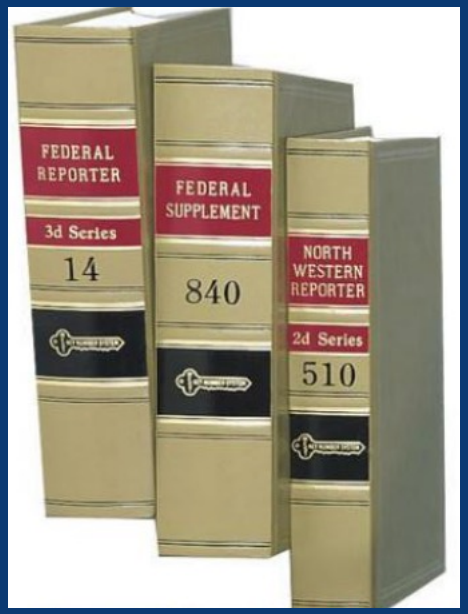
- When the case name was already given in full in the text, you omit the case name in the citation:
  - In *Brady v. Maryland*, the Court held that the prosecution must turn over exculpatory information to the defendant.[1]
  - [1] 373 U.S. 83, 85 (1963).

- But if the case name was not given in full, you must include it in the citation:
  - In *Brady*, the Court held that the prosecution must turn over exculpatory information to the defendant. [1]
  - [1] Brady v. Maryland, 373 U.S. 83, 85 (1963).

Reporters

- **Reporters:** a series of books where judicial opinions are published
  - "Official" - by the government
  - "Unofficial" – by private companies

- <u>**T1**</u> tells you which reporter to cite for federal and state courts.
  - Pay attention to the order reporters are listed.
    - *E.g.*, U.S. reporter preferred to S. Ct.

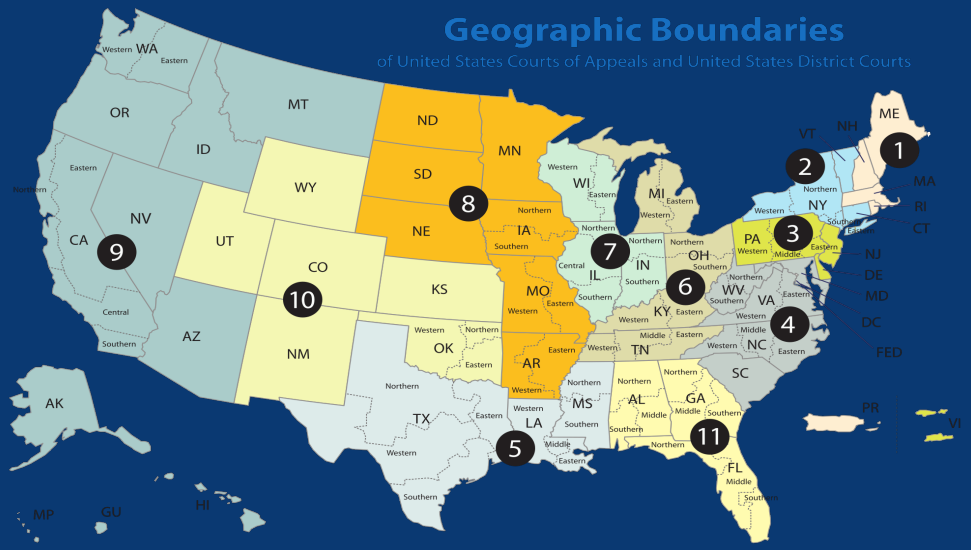


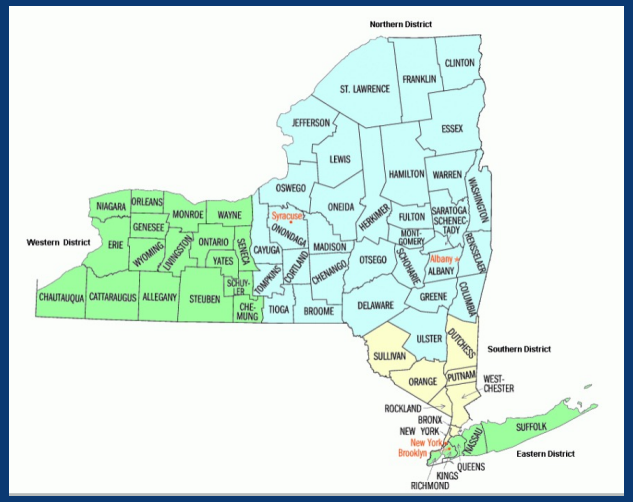
Preferred Reporters

Federal Reporters		State Reporters	
Supreme Court	U.S.	State *X*: Supreme Court	Check T1
Federal Courts of Appeal	F., F.2d, F.3d	State *X*: Court of Appeals	Check T1
Federal District Courts	F. Supp., F. Supp. 2d, F. Supp. 3d	State *X*: District Courts	Check T1

Court and Jurisdiction

- Every case citation must indicate which court decided the case
- In the United States: 1 Supreme Court, 13 Circuit Courts, 96 District Courts





Federal Courts

Federal Reporters		Court Designation	Example
Supreme Court	U.S.	No	338 U.S. 1 (1967)
Federal Courts of Appeal	F., F.2d, F.3d	1st Cir., 2d Cir., 3d Cir., etc.	294 F.2d 150 (5th Cir. 1961)
Federal District Courts	F. Supp., F. Supp. 2d, F. Supp. 3d	S.D.N.Y., E.D. Cal., N.D. Okla.	123 F. Supp. 484 (N.D. Cal. 1954)

State Courts

- Check T1 for the proper abbreviation
- In general, the format = the state + court
  - Conn. App. Ct., Okla. Crim. App., N.J. Super. Ct. Law Div.
  - The exception: when citing the highest court in the state, only indicate the state
  - Right: People v. Armour, 590 N.W.2d 61 (Mich. 1999).
  - Wrong: People v. Armour, 590 N.W.2d 61 (Mich. ~~S. Ct.~~ 1999).
- Omit the jurisdiction and/or court <u>if and only if</u> unambiguously conveyed by the reporter
  - Right: DiLucia v. Mandelker, 493 N.Y.S.2d 769 (App. Div. 1985).
  - Right: Bates v. Tappan, 99 Mass. 376 (1868).

10.4

<u>Remember – the reporter and the court must agree!</u>

Ward v. Reddy, 727 F. Supp. 1407 (D. Mass. 1990)

Wolf v. Colorado, 338 U.S. 25 (1949)

Hendricks v. Behee, 786 S.W.2d 610 (Mo. Ct. App. 1990)

Loving v. Virginia, 338 U.S. 1 (Va. 1967)

If there's an inconsistency, flag with an LE query!

Date or Year

- For reported cases, include the year of decision in the date parenthetical.
  - Year the case was **decided** (not the date argued)
- For unreported cases / slip opinions (which we'll get to), provide the entire date.
  - Kitchens v. Grohman, No. 90-347, slip op. at 6 (D. Mass. Dec. 4, 1990)
- If there's no decision, cite the date of the last "major disposition."
  - Exhaustive list of "major dispositions" on 107 (Rule 10.5(c))

Parenthetical Information

- A "weight of authority" parenthetical may be added after the date parenthetical
  - *E.g.*, (en banc), (per curiam), (2-1 decision)
- Indicate dissent, plurality, etc., parenthetically
  - Ledbetter v. Goodyear Tire & Rubber Co., 550 U.S. 618, 643 (2007) (Ginsburg, J., dissenting).
- When a case cites or quotes another case, include that case in a "citing" or "quoting" parenthetical
  - Only one level of recursion is required
- Don't forget to check Rule 1.5(b) and the Style Guide Rule 1.5(b) for order!!

Prior and Subsequent History

- Subsequent history is required whenever a case is cited in full, but in practice, you don't see subsequent history often…
  - Exceptions:
    - Omit denials of certiorari/similar discretionary appeals, UNLESS the decision is less than two years old
    - Omit history on remand
    - Omit any disposition withdrawn by the deciding authority
- Prior history is only given if it is significant to the point for which the case is being cited.
- T8 has a list of abbreviations for explanatory phrases

10.7.2

Different Case Name on Appeal

- If the name of the case changed in subsequent history, you must give the new name, introduced by *sub nom.,*
  - [case citation], *rev'd sub nom.,* [subsequent case citation]
- Rule applies even when difference in name is subtle, such as change in the procedural phrase
- Do not use *sub nom.*, when:
  - (1) parties are just reversed, or
  - (2) name change comes with a denial of cert. or rehearing, or
  - (3) change is purely stylistic (*e.g.*, State → California)

S.R. 10.7.2

Different Case Name on Appeal

You must cite the subsequent or prior case in full even if the case was cited in full in the last five footnotes

1 Smith v. Jones, 100 F.3d 200 (11th Cir. 2020).

2 Jones v. Macintosh, 400 F. Supp. 3d 100 (N.D. Fla. 2019), *rev'd sub nom.*, Smith v.Jones, 100 F.3d 200 (11th Cir. 2020).

Pending and Unreported Cases

- Unreported case available in an electronic database:
  - [Name], [Docket number], [Year] [Database identifier] [Database identifier number], at *[pincite] [(Court abbreviation and full date of disposition)].
  - Shelton v. City of Manhattan Beach, No. B171606, 2004 WL 2163741, at *1 (Cal. Ct. App. Sept. 28, 2004).

- Unreported case only available as a slip opinion:
  - [Name], [Docket number], slip op. at [pincite] [(Court abbreviation and full date of most recent disposition)].
  - Louis Vuitton v. Chanel, No. 77 Civ. 1782, slip op. at 6 (S.D.N.Y. Jan. 31, 2017).

Pending and Unreported Cases

- LexisNexis introduced an alternative short citation form that may be used interchangeably:
  - Albrecht v. Stranczek, No. 87 C 9535, 1991 U.S. Dist. LEXIS 5088, at *1, *3 (N.D. Ill. Apr. 15, 1991).
  - Albrecht v. Stranczek, No. 87 C 9535, 1991 LX 2672345, at *1, *3 (N.D. Ill. Apr. 15, 1991).

S.R. 10.8.1

10.8.1(a): Cases Available on Electronic Media

- When citing a docket number, the initial digital preceding the colon and the judge's initials should be omitted
- This applies to any use of a docket number!

10.8.1(b): Slip Opinions

- If there are concurrences or dissents that are separately paginated, specify which opinion is being cited in parentheses
- For *id.* citations, only include nonrepetitive information

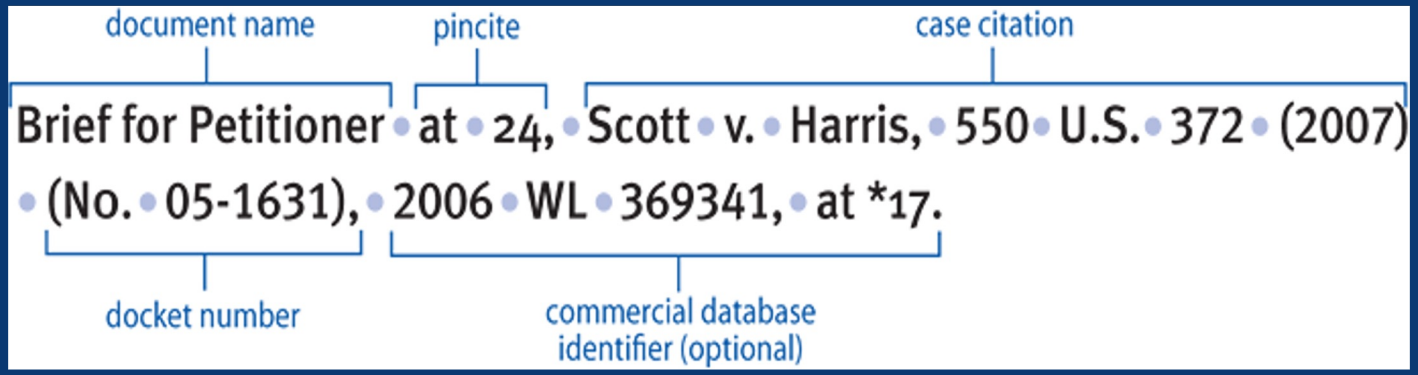
10.8.2

Fifth Circuit Split

- On October 1, 1981, the Fifth Circuit split into the Fifth and Eleventh Circuits. We have to be extra careful about the transition.
  - Any Fifth Circuit cases from 1981 need the month of decision.
    - Birl v. Estelle, 660 F.2d 592 (5th Cir. Nov. 1981)
  - Give unit information when available (on WL)
    - Jones v. Smith, 676 F.2d 1023 (5th Cir. Unit B 1982)
  - If after Sept. 30, 1981, nonunit judgment, and labeled as Former Fifth → label as Former 5th Cir.
    - McCall v. Yee, 680 F.2d 345 (Former 5th Cir. 1982)

Court Filings

- Same general format for all court filings:



- (S.R. 10.8.3) If the case name changes between when a document is filed and the case is decided, use the case name on the opinion, not on the filing
- You may cite the case in short form if it was cited in the last five footnotes, but retain the docket number
  - Brief for the Petitioner, *Demore*, 538 U.S. 510 (No. 01-1491)
- You can use supra! --> Brief for the Petitioner, *supra* note 1, at 12

Court Filings

- Case unreported but available on database
  - Use docket number instead of case citation
  - Append database identifier to citation
  - If the original copy is not available, use starred pagination
  - Brief for the United States at *6-9, United States v. Dye, No. 09-3410 (3d Cir. July 14, 2010), 2010 WL 8924294
- Case unreported and unavailable on database
  - Use docket number instead of case citation
  - Append URL/permalink to citation
  - Complaint at 18, Eaton Vance Mgmt. v. Wilmington Sav. Fund Soc'y, No. 654397/2017 (N.Y. Sup. Ct. Apr. 25, 2018), https://www.bloomberglaw.com/product/blaw/document/X1Q6NSHTE2O2/download?documentName=E1.pdf&fmt=pdf [https://perma.cc/E7PS-7DNY]

Short Forms for Cases

- If a case has already been cited, you might be able to use a short form.
  - New York v. Belton, 453 U.S. 454, 457 (1981) becomes *Belton*, 453 U.S. at 457
- **Five-footnote rule**: a short form of a case can ONLY be used if the case has been cited (in short or in full) in the same footnote OR in the preceding five footnotes
  - If it has been more than five footnotes, you must cite the case in full again.
- *Id.* can be used if the last source cited is the case, subject to the other restrictions in rule 4.

Short Forms for Cases

- Remember back to rule 4…

Supra may NOT be used for
• **cases** • statutes or constitutions • legislative materials (other than hearings) • restatements or model codes • regulations

Short Forms for Cases

- General short form format:
  - If citing a specific part of a case: [*One party's name*], [reporter volume] [reporter] at [pincite].
    - *Loving*, 388 U.S. at 4.
  - If citing the entire decision: [*One party's name*], [reporter volume] [reporter] [first page of case].
    - *Loving*, 388 U.S. 1.
- Goal with using one party's name is to be unambiguous
  - Don't use government entities, government officials, or common litigants as the one party

10.9

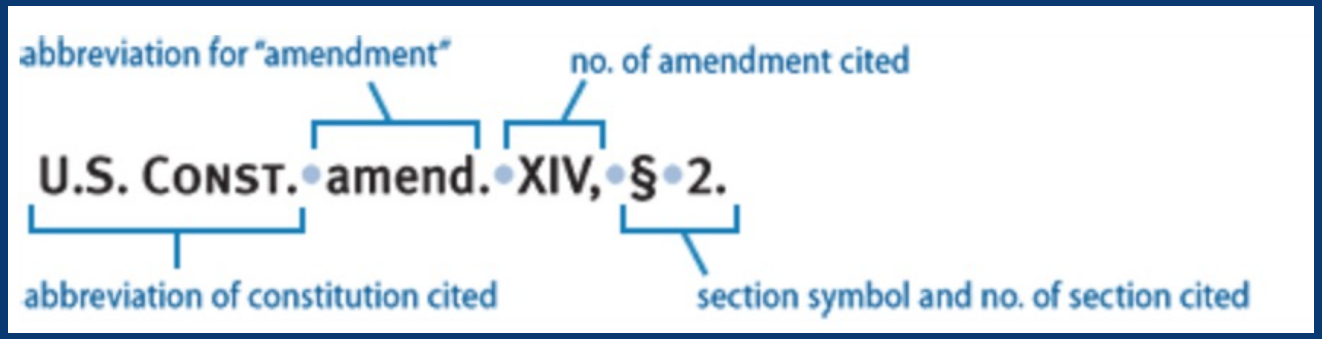
- For cases in Westlaw or Lexis, use the unique database identifier
  - Clark v. Homrighous, No. CIV.A.90-1380-T, 1991 WL 55402, at *3 (D. Kan. Apr. 10, 1991) → *Clark*, 1991 WL 55402, at *3
- You can use *id.* for cases! But, if you're referring to a different opinion within the same case (dissent, concurrence, etc.), that must be indicated parenthetically

- [1] Youngstown Sheet & Tube Co. v. Sawyer (*Steel Seizure*), 343 U.S. 579 (1952).
- [2] *Id.* at 584.
- [3] *Id.* at 635 (Jackson, J., concurring).
- [4] *Id.* at 638.
- [5] *Id.* at 589 (Frankfurter, J., concurring).
- [6] *Id.* at 582 (majority opinion).

Rule 11:

Constitutions

Constitutions



- Abbreviate the subdivisions of constitutions according to **T16**
- For state constitutions, replace "U.S." with the appropriate state abbreviation (T10) in SMALL CAPS
- For provisions currently in force, no date is needed
- For provisions that have been repealed or amended, indicate that fact parenthetically with the date
- Do not use a short citation form other than *id.*

Rule 11, cont'd

Constitutions

	Citation	Text
U.S. Constitution	U.S. Const. art. IV, § 1	Article IV, Section 1 or the Full Faith and Credit Clause
State constitution	S.C. Const. art. I, § 12	article I, section 12 or the double jeopardy clause
Nongovernmental organization constitution	World Health Org. Const. ch. 2, art II, § (a)	chapter 2, article II, section (a) or coordination clause

- Special rules for foreign and tribal constitutions supersede this rule.
  - For foreign constitutions, see rule 20.4
  - For tribal constitutions, see rule 22.2.1

Questions?

- Anonymous Question Form
- Anonymous Feedback Form
- Next training: Rules 12-14 on **Wednesday, February 25, 12:10 PM, SLB 128**